

The motion is **GRANTED**. The Mandatory Settlement Conference and Trial dates are **VACATED**. Defendants submitted a proposed Order that will be modified to reflect the Court's ruling. Appearances are necessary on today's calendar.

GEROSIN, ET AL. VS. REDDING SENIOR LIVING LLC, ET AL.

CASE NUMBER: 25CV-0209491

Tentative Ruling on Motion for Trial Preference: Plaintiff Thomas Gerosin, as an individual and successor in interest to Betty Gerosin, moves pursuant to Code of Civil Procedure section 36 for an order granting trial setting preference in this matter on the grounds that Plaintiff is over the age of 70, that Plaintiff has a substantial interest in this case as a whole, and that Plaintiff's health makes preference necessary to prevent prejudice to Plaintiff's interest in the lawsuit. Defendants oppose the Motion.

Objections to Evidence: Defendants object to Paragraphs 1-3 of the Declaration of Megan Yarnall. The objections are overruled.

Merits: A party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings: (1) The party has a substantial interest in the action as a whole. (2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation. CCP § 36(a).

As to element 1, Plaintiff has established that Plaintiff has a substantial interest in the action as a whole. Plaintiff is the surviving husband of Betty Gerosin, decedent in this action. He asserts both survivorship and individual claims. He and his late wife allege that they were both directly harmed by Defendants' conduct.

As to element 2, Plaintiff has not established that the health of Plaintiff is such that preference is necessary to prevent prejudicing Plaintiff's interest in the litigation.

The evidence submitted in support of this motion consists of an attorney declaration. This is permitted under CCP 36.5: "An affidavit submitted in support of a motion for preference under subdivision (a) of Section 36 may be signed by the attorney for the party seeking preference based upon information and belief as to the medical diagnosis and prognosis of any party. The affidavit is not admissible for any purpose other than a motion for preference under subdivision (a) of Section 36." The declaration need not be from Plaintiff himself.

However, the declaration does not address "the medical diagnosis or prognosis of any party." Regarding Plaintiff's health, the attorney declaration only states: "As a nonagenarian [Plaintiff] faces health risks, physical limitations, and uncertainties that accompany advanced age." (Decl. Yarnall ¶ 2.) There is no specific evidence about any health problems of Plaintiff in particular, just about the risks associated with advanced age in general. No evidence or argument is presented regarding trial preference as a necessity to prevent prejudicing Plaintiff's interest, other than citing advanced age in general. The statute specifically requires the court to make a finding regarding the party's *health*. On this record, the Court does not have sufficient evidence to make a finding regarding Plaintiff's health. Therefore, the Motion is **DENIED**. Plaintiff's proposed order will be modified.